

**BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA**

PRC APPEAL No. 53/2025

M/S Saifullah Muhammad Shai, Government Contractor, in Joint Venture with M/s Ghulam Dastagir Construction Company, through its Proprietor Saifullah Muhammad Shai

... Appellant

Versus

1. The Secretary, Communication Works, Physical Planning & Housing Department (CWPP&H), Government of Balochistan
2. The Executive Engineer (Buildings), CWPP&H Department, District Khuzdar
3. M/s Dad Muhammad (Pvt.) Limited
4. Chief Engineer, C&W Department, Chairman CRC, Khuzdar

... Respondents

DECISION

I. Brief Facts

The Executive Engineer (Buildings), Communication Works, Physical Planning and Housing Department, District Khuzdar, invited bids vide TSE No. 252610903203 for the project titled "Construction of Bridge at Koshk Lizzo, Koshk River to Lizzo, District Khuzdar", having an approved estimated cost of PKR 388,349,584, under Single Stage Two Envelope bidding procedure on Least Cost Selection Method. The Appellant, being a Joint Venture, submitted its bid electronically on 20.10.2025, quoting 11.5% below the estimated cost. Out of nine (09) participating bidders, only three (03) were declared eligible, whereas six (06) bidders, including the Appellant, were declared non-responsive on the ground that the Call Deposit Receipt (CDR) and Green Challan were submitted by the secondary partner of the Joint Venture instead of the primary partner.

II. Prayer of the Appellant

The Appellant prayed that this Committee may be pleased to:

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1. Set aside the impugned decision of the Procuring Agency as well as the decision of the Grievance Redressal Committee, being illegal, unlawful, and against the BPPRA Rules;
 2. Declare the Appellant technically responsive and eligible for the award of the work in question;
 3. Declare the award of the contract in favour of Respondent No.3 as unlawful, void, and of no legal effect;
 4. Hold and declare that the Appellant, being the lowest evaluated bidder, is entitled to the award of the contract;
 5. Direct the Procuring Agency to award the work in question to the Appellant in accordance with law; and
 6. Grant any other relief deemed just, equitable, and proper in the circumstances of the case.

III. Findings of the Committee

The Committee has heard the learned counsel for the Appellant as well as the representatives of the Respondents and has carefully examined the record placed before it.

It is observed that the Grievance Redressal Committee dismissed the complaint on the ground of limitation under Rule 56 of the BPPRA Rules, as the technical evaluation was finalized on 23.10.2025, the financial evaluation report was uploaded on 17.11.2025, whereas the complaint was filed on 28.11.2025 beyond the prescribed period. The Appellant has failed to demonstrate any legal infirmity in the said finding.

The Committee further finds that the Procuring Agency evaluated the bids strictly in accordance with the evaluation criteria prescribed in the bidding documents. In this regard, Rule 35(1) of the BPPRA Rules categorically provides that "all bids shall be evaluated in accordance with the evaluation criteria and other terms and conditions set forth in the bidding documents."

The record reflects that the condition of the eligibility criteria comprising submission of Green challan and CDR which was clearly reflected in the bidding documents of the instant development work whereby requiring the "primary bidder/partner" of the JV (joint venture) to submit the mandatory instruments instead of the "secondary bidder/partner", has been applied by the Procuring Agency uniformly to all bidders, and the Appellant was declared non-responsive on the same grounds as other similarly placed bidders. No material has been placed on record to establish that the evaluation was discriminatory, arbitrary, or in deviation of the bidding documents. Accordingly, the Committee is satisfied that the evaluation process was carried out in consonance with the BPPRA Rules.

IV. Decision

For the reasons stated above, this Committee finds no merit in the appeal. The decision of the Grievance Redressal Committee dated 10.12.2025 is upheld. Accordingly, the appeal is dismissed. The Registrar of this Committee is directed to communicate this decision to all concerned.

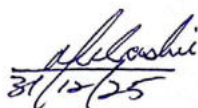
Announced on this 31st day of December, 2025 under the seal and Authority of the Chairman, Procurement Review Committee, Balochistan Public Procurement Regulatory Authority.



Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Procurement Review Committee
(B-PPRA)

31/12/2025



Mubashir Ali Khan (FCIPS)

Member
Procurement Review Committee
BPPRA



Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA



Engr. Muhammad Ayub Nasir

Member
Procurement Review Committee
BPPRA

31/12/2025



Syed Muheebullah, Advocate

Member
Procurement Review Committee
BPPRA